

COMMITTEE ON JUDICIARY AND ELECTIONS
SENATE AMENDMENTS TO S.B. 1687
(Reference to printed bill)

1 Strike everything after the enacting clause and insert:

2 "Section 1. Section 16-201, Arizona Revised Statutes, is amended to
3 read:

4 16-201. Primary elections

5 THROUGH 2026, a primary election shall be held on the second to last
6 Tuesday in July in any year in which a general election or special
7 election is held and at which candidates for public office are to be
8 elected. BEGINNING IN 2027 AND LATER, A PRIMARY ELECTION SHALL BE HELD
9 ON THE TUESDAY BEFORE THE LAST MONDAY IN MAY IN ANY YEAR IN WHICH A
10 GENERAL ELECTION OR SPECIAL ELECTION IS HELD AND AT WHICH CANDIDATES FOR
11 PUBLIC OFFICE ARE TO BE ELECTED.

12 Sec. 2. Section 16-204, Arizona Revised Statutes, is amended to
13 read:

14 16-204. Declaration of statewide concern: consolidated
15 election dates; definition

16 A. The legislature finds and determines that for the purposes of
17 increasing voter participation and for decreasing the costs to the
18 taxpayers it is a matter of statewide concern that all elections in this
19 state be conducted on a limited number of days and, therefore, the
20 legislature finds and declares that the holding of all elections on
21 certain specific consolidated days is a matter of statewide concern. This
22 section preempts all local laws, ordinances and charter provisions to the
23 contrary.

24 B. For elections held before 2014 and notwithstanding any other law
25 or any charter or ordinance of any county, city or town to the contrary,
26 an election held for or on behalf of a county, city or town, a school
27 district, a community college district or special districts organized
28 pursuant to title 48, chapters 5, 6, 8, 10, 13 through 16 and 33 may only
29 be held on the following dates:

30 1. Except for regular elections for candidates in a city or town
31 with a population of one hundred seventy-five thousand or more persons,
32 all elections, including recall elections and special elections to fill
33 vacancies, shall be held on:

34 (a) The second Tuesday in March.

35 (b) The third Tuesday in May.

1 (c) The tenth Tuesday before the first Tuesday after the first
2 Monday in November.

3 (d) The first Tuesday after the first Monday in November.
4 Notwithstanding any other law, an election must be held on this date for
5 the approval of an obligation or other authorization requiring or
6 authorizing the assessment of secondary property taxes by a county, city,
7 town, school district, community college district or special taxing
8 district, except as provided by title 48.

9 2. For regular elections that are only for candidates in a city or
10 town with a population of one hundred seventy-five thousand or more
11 persons and not including recall elections and special elections to fill
12 vacancies in those cities or towns, elections shall be held on:

13 (a) The tenth Tuesday before the first Tuesday after the first
14 Monday in November.

15 (b) The first Tuesday after the first Monday in November.

16 C. For elections held before 2014, for any city or town, including
17 a charter city, that holds its regularly scheduled candidate elections in
18 even-numbered years pursuant to subsection B, paragraph 2 of this section,
19 the term of office for a member of the city council or for the office of
20 mayor begins on or after the second Tuesday in January in the year
21 following the election.

22 D. Subsections B and C of this section do not apply to an election
23 regarding a county or city charter committee or county or city charter
24 proposal that is conducted pursuant to article XIII, section 2 or 3 or
25 article XII, section 5, Constitution of Arizona.

26 E. Beginning with elections held in 2014 and later and
27 notwithstanding any other law or any charter or ordinance to the contrary,
28 a candidate election held for or on behalf of any political subdivision of
29 this state other than a special election to fill a vacancy or a recall
30 election may only be held on the following dates and only in even-numbered
31 years:

32 1. Beginning in 2026 and ~~later~~ THROUGH 2026, the second to last
33 Tuesday in July. BEGINNING IN 2027 AND LATER, THE ELECTION SHALL BE HELD
34 ON THE TUESDAY BEFORE THE LAST MONDAY IN MAY. If the political
35 subdivision holds a primary or first election and a general or runoff
36 election is either required or optional for that political subdivision,
37 the first election shall be held on this date, without regard to whether
38 the political subdivision designates the election a primary election, a
39 first election, a preliminary election or any other descriptive term.

40 2. The first Tuesday after the first Monday in November. If the
41 political subdivision holds a general election or a runoff election, the
42 second election held shall be held on this date. If the political
43 subdivision holds only a single election and no preliminary or primary or

1 other election is ever held for the purpose of reducing the number of
2 candidates, or receiving a partisan nomination or designation or for any
3 other purpose for that political subdivision, the single election shall be
4 held on this date.

5 F. Beginning with elections held in 2014 and later that are not
6 candidate elections, an election held for or on behalf of any political
7 subdivision of this state, and including a special election to fill a
8 vacancy or a recall election, may only be held on the following dates:

9 1. The second Tuesday in March.

10 2. The third Tuesday in May.

11 3. Beginning in 2026 and ~~later~~ THROUGH 2026, the second to last
12 Tuesday in July. BEGINNING IN 2027 AND LATER, THE ELECTION SHALL BE HELD
13 ON THE TUESDAY BEFORE THE LAST MONDAY IN MAY.

14 4. The first Tuesday after the first Monday in November.
15 Notwithstanding any other law, an election must be held on this date for
16 the approval of an obligation or other authorization requiring or
17 authorizing the assessment of secondary property taxes by a county, city,
18 town, school district, community college district or special taxing
19 district, except as provided by title 48. Notwithstanding any other law,
20 an election must be held on the date specified in this paragraph and only
21 in even-numbered years for the approval of or authorizing the assessment
22 of transaction privilege taxes by a county, city or town.

23 G. Notwithstanding any other law, for an election administered by a
24 county recorder or other officer in charge of elections on behalf of a
25 city, town or school district and that is an all mail ballot election for
26 that city, town or school district, the county recorder or other officer
27 in charge of elections may use a unified ballot format that combines all
28 of the issues applicable to the voters in the city, town or school
29 district requesting the all mail ballot election.

30 H. For the purposes of this section, "political subdivision" means
31 any governmental entity operating under the authority of this state and
32 governed by an elected body, including a city, town, county, school
33 district or community college district or any other district organized
34 under state law but not including a special taxing district.

35 Sec. 3. Section 16-206, Arizona Revised Statutes, is amended to
36 read:

37 16-206. Election day

38 A. THROUGH 2026, the biennial primary election day on the second to
39 last Tuesday in July in the year the general election is held and the
40 biennial general election day on the first Tuesday after the first Monday
41 in November of every even-numbered year are not legal holidays. BEGINNING
42 IN 2027 AND LATER, THE BIENNIAL PRIMARY ELECTION DAY ON THE TUESDAY BEFORE
43 THE LAST MONDAY IN MAY IN THE YEAR THE GENERAL ELECTION IS HELD AND THE

Senate Amendments to S.B. 1687

1 BIENNIAL GENERAL ELECTION DAY ON THE TUESDAY AFTER THE FIRST MONDAY IN
2 NOVEMBER OF EVERY EVEN-NUMBERED YEAR ARE NOT LEGAL HOLIDAYS.

3 B. Every public officer or employee is entitled to absence from
4 service or employment for the purpose of voting pursuant to section 16-402
5 on the biennial primary and general election days."

6 Amend title to conform

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